PROCEDURE

Disciplinary & Grievance Procedure

1. Purpose and principles

This procedure follows the **ACAS Code of Practice on Disciplinary and Grievance Procedures**. It helps managers deal with conduct issues fairly and gives employees a clear route to raise concerns. Performance (capability) and sickness are handled under separate procedures.

- Issues are resolved informally where possible.
- No disciplinary action is taken until the matter has been investigated.
- Employees are told the allegations and given evidence in advance of any hearing.
- Employees may be accompanied by a colleague or trade union representative at formal meetings.
- Meetings may take place on Teams; recordings are not made without everyone's consent.

2. Disciplinary procedure

1. **Investigation** — an investigating manager (not the hearing manager) gathers facts, normally within 10 working days.
2. **Invitation** — at least 5 working days' written notice of a hearing, with evidence attached.
3. **Hearing** — chaired by a manager with HR present; the employee states their case.
4. **Outcome** — confirmed in writing within 5 working days.
5. **Appeal** — in writing within 7 working days to a more senior manager not previously involved.

Table 1 — Sanctions

Sanction	Live on file
First written warning	6 months
Final written warning	12 months
Dismissal (with notice)	—
Summary dismissal (gross misconduct)	—

Examples of gross misconduct

- Theft, fraud, or deliberately falsified expense claims, timesheets or learner evidence (including OTJ hours or ILR data).
- Serious breach of safeguarding or Prevent duties.
- Serious breach of data protection, including deliberately uploading learner personal data to unapproved AI tools.
- Harassment, bullying or discrimination.
- Being unfit for work through alcohol or drugs.

3. Grievance procedure

1. Raise the issue informally with your manager (or another manager if it concerns them).

2 If unresolved, submit a written grievance to the HR Business Partner.

3 A grievance meeting is held within 10 working days; you may be accompanied.

4 Written outcome within 5 working days of the meeting.

5 Appeal within 7 working days to the People Director (or CEO if the People Director was involved).

4. Timescales summary

Notice of hearing	5 working days
Outcome letter	5 working days after meeting
Appeal window	7 working days
Records retained	Personnel file; 6 years after employment ends